



Notification Waiver Determination

QIC – CopperString Project assets from Powerlink Queensland

Acquisition	In connection to the CopperString Project, subsidiaries of Queensland Investment Corporation (QIC Limited) (QIC), QBF No. 2 Pty Ltd as trustee for the CopperString Project Assets Hold Trust (SPV1 and SPV1 Trust respectively), and North Queensland Regional Energy Co Pty Ltd as trustee for the North Queensland Regional Energy Trust (SPV2 and SPV2 Trust respectively), applied for a notification waiver in respect of the proposed transfer of certain assets from Queensland Electricity Transmission Corporation Limited (trading as Powerlink Queensland) (Powerlink), to the extent it involves an acquisition of assets, any kind of property and/or legal or equitable rights that are not property (the Acquisition). The assets will be transferred to SPV1 (or another newly established QIC subsidiary) acting in its capacity as trustee for SPV1 Trust, and SPV2 as trustee for SPV2 Trust, pursuant to an asset transfer deed and a regulation made under s 161 of the <i>Government Owned Corporations Act 1993</i> (QLD), as described in the documents provided as part of the application. The assets being transferred include contracts, land and physical assets (such as office equipment).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	9 June 2026

Parties to the Acquisition	The acquirers will both be subsidiaries of the Queensland Investment Corporation, QIC. QIC is established under the <i>Government Owned Corporations Act 1993</i> (QLD) and <i>Queensland Investment Corporation Act 1991</i> (QLD). QIC is a leading global diversified alternative investment manager with over AUD 131 billion in assets under management (as at 30 June 2025). QIC manages interests in Tilt Renewables and Pacific Energy, which provide electricity generation services. QIC does not have interests in any electricity transmission services in Australia. The vendor, Powerlink, is also established under the GOC Act. Powerlink develops, operates and maintains the high voltage electricity transmission network in Queensland, supplying electricity transmission network services and related transmission infrastructure services. Powerlink's network extends 1,700 kilometres from Cairns to the NSW border. Both QIC and Powerlink are Queensland Government owned corporations.
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	The CopperString Project is a major construction project to build transmission lines and substations in North and Northwest Queensland in two parts: the Eastern Link from Reid River (near Townsville) to Hughenden and the Western Link from Hughenden to Mount Isa. The Queensland Government has commissioned QIC to oversee delivery of the CopperString Project. SPV2 is ultimately intended to be a vehicle which will allow for private sector investment in the CopperString Project.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is little or no horizontal overlap between QIC and the CopperString Project in the supply of transmission services b. there is a low risk of foreclosure or other concerning vertical effects resulting from exclusionary conduct post-acquisition c. the CopperString Project will be a regulated asset subject to various non-discrimination obligations d. the Queensland Government will continue to hold the beneficial interest in the CopperString Project assets. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. The ACCC notes that it also considered whether the Acquisition fell within the scope of sections 51ABU and 51ABV of the Act and the potential application of section 51ABD (internal restructure and reorganisations) of the Act. Having regard to the particular circumstances, including the consequences of non-notification in reliance on the exemption if it was found not to apply, the ACCC considered it appropriate to make a determination on the basis that the acquisition provisions in the Act apply to the Acquisition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act